

		On 7/16/25, this court granted a Motion for Stay filed by Objector Katie Mello Lutz ("Objector") and issued an order staying the instant trust proceeding pending the resolution of the civil action commenced in the state of Massachusetts or further order of court. (ROA 66.) This ruling was made without prejudice to any party's right to seek an order lifting the stay upon stipulation of the parties or upon a showing of good cause. The court further set a Review Hearing re Stay for 1/14/26. At the 1/14/26 Review Hearing re Stay, counsel informed the court that the Massachusetts action was still pending, and the court continued the Review Hearing to 8/19/26. (ROA 88.) On 8/3/26, counsel for Petitioner Kevin Mello ("Petitioner") filed a Status Report, informing the court that the Massachusetts action is still pending and there are no court hearings scheduled in that action. (ROA 99.) In said Status Report, Petitioner argues that this court may determine the validity of the Decedent's 9/19/21 will in this trust proceeding (rather than in a separate probate proceeding) because (1) there is no probate matter submitting a will, and (2) the trust instrument incorporates the use of a will to determine distribution of trust assets. The court finds such argument persuasive, though it is not currently at issue and, therefore, unopposed. Petitioner further contends in the Status Report that the issue of the validity of the will in question is only before this court. From the court's reading of the verified complaint filed in the Massachusetts action, it appears that Objector challenges the validity of the will in said complaint. (See ROA 14, Ex. A, ¶¶ 15-17.) It is not clear whether Petitioner is requesting that this action proceed on the issue of the validity of the will while the Massachusetts action is still pending. If Petitioner wishes to have the stay or any portion thereof lifted, he should file a noticed motion to lift the stay. Counsel for Objector should be prepared to discuss the status of the Massachusetts action.
01499532	Rodman – Trust	TENTATIVE RULING Case: Rodman – Trust 01499532

Calendar No: 8

Date: 08/19/26

**MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA
39)**

Petitioner Kevin Craige Kruse moves for an order compelling Respondent Kara Kruse Lee to provide further responses to Requests for Production of Documents, Set One, demand nos. 41 and 42.

On 9/4/25, Petitioner propounded Requests for Production of Documents, Set One, on Respondent. (ROAs 37 and 40, Hamilton Decl., ¶ 8, Ex. B.) After obtaining an extension, Respondent timely served responses on 10/20/25. (ROA 70, Duff Decl., ¶ 6.)

In response to Request Nos. 41 and 42, Respondent responded, as follows:

"Responding party will produce documents responsive to this request." (ROA 31, Pet. Sep. Stmt.)

Code of Civil Procedure section 2031.220 states, as follows:

"A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that **all** documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." (Emphasis added.)

Petitioner correctly argues that Respondent's responses do not comply with the Code, as they fail to indicate whether Respondent is producing "all" responsive documents. It is unclear from the written responses whether Respondent is complying with the subject request in whole or in part.

After meeting and conferring, Respondent re-produced the responsive documents with a label that more clearly identified which documents are responsive to Request Nos. 41 and 42. (Duff Decl., ¶ 9.) However, Respondent did not serve a further written response.

In her declaration in opposition to the instant motion, Attorney Jeany Duff states that Respondent "has no further documents responsive to request numbers 40 and 41." (Id. at ¶ 10.) However, such statement lacks foundation and personal knowledge; more importantly, the declaration of

		counsel does not cure the defect in the written discovery responses. The Code requires Respondent to swear under oath that she will produce <u>all</u> documents responsive to the requests. Based on the foregoing, the motion to compel further responses to Request Nos. 41 and 41 is GRANTED. Respondent shall serve further responses under oath and without objection, within 10 days of notice of this ruling, extended for method of service. Pursuant to Code of Civil Procedure section 2031.310(h) the court imposes reasonable sanctions of \$3,120.00 jointly and severally against Respondent and her counsel of record, Jeany Duff, payable to Hamilton & Associates, APC within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing. Petitioner is ordered to file and serve notice of ruling. [Motion Type]
01447409	Poska - Trust	TENTATIVE RULING Case: Poska - Trust 01447409 Calendar No: 9 Date: 08/19/26 <u>MOTION TO QUASH SUBPOENA (ROA 51)</u> Respondent Kimberly Valentine-Poska filed the instant motion to quash a subpoena issued to Citibank by Petitioners Alexander Poska and Ryan Poska. (ROA 51.) On 11/13/25, Petitioners issued the subject subpoena to Citibank. Petitioners did not serve Respondent with a Notice to Consumer, nor did Petitioners serve Respondent with a copy of the subpoena. On 11/25/25, Respondent received a letter from Citibank's Legal Support Unit advising her of the subpoena. This was the first time Respondent learned of the subpoena. On 11/26/25, Respondent's counsel sent Citibank a letter, raising various objections to the subpoena, including but not limited to, the lack of proper notice and privacy rights. The